

WRITTEN SUBMISSIONS · 16 JUL 1999

Brief — McDonald's

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Pleadings / procedural document	16 Jul 1999	From McDonald's France

SUMMARY SHEET

Brief no. 2 to the experts — McDonald's France · 16 July 1999

Overview: brief from McDonald's France addressed to the experts Jean-Luc Dumont and Alain Martin, signed by Jean-Marie Leloup. It forms part of the expert assessment ordered by the judgment of the Paris Court of Appeal of 9 December 1998 (RG 1998.14119) and answers the questions raised at the meeting of 11 May.

Key points

The brief answers the Court's questions point by point and disputes the opposing arguments. On profitability, McDonald's argues that a reduction in Mr Collorafi's salary in 1995 and 1996, or a contribution to the current account, would not have enabled SEBOL and B et O to reach break-even point, and that the salary of Mrs Collorafi, considered genuine but of no use, reveals over-remuneration. The company explains that the minimum fee derives from investment costs broader than the fixed assets alone (17,636 KF), including financial costs, the costs of the expansion teams and registration duties. Finally, it details its method for estimating the turnover for Antibes Ouest: an average ticket set at 50 F and 260,000 transactions a year, i.e. an estimated turnover of 13,000,000 F, based on the 540 restaurants open at the end of 1996.

Significance

This document sheds light on the technical debate in the expert assessment on the respective economic responsibilities, at the core of the quantification of damages in the dispute.

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Source: bernardcollorafi.org/en/documents/brief-to-experts-mcdonalds-profitability-fees-1999/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.